

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

JANE DOE (AMG) 1, et al.,

Plaintiffs,

v.

CHAFFEY JOINT UNION HIGH SCHOOL
DISTRICT, et al.,

Defendants.

And Consolidated Complaints and Cross-
Complaints

Case No.: CIVSB2213835

**[TENTATIVE] ORDER DENYING
MOTION FOR SUMMARY
JUDGMENT FILED BY
DEFENDANT CHAFFEY JOINT
UNION HIGH SCHOOL
DISTRICT**

I. INTRODUCTION

These consolidated litigations concern the capturing of the Plaintiffs in nude or semi-nude video footage. The following 9 separate litigations have been filed against Defendants Chaffey Joint Union High School District (“District”) and David Arthur Riden:

1. CIVSB2213835 (Master): Plaintiffs Jane Does (AMG) 1-28 and 30-48¹ filed their Complaint on July 6, 2022 [AMG Complaint/Litigation].
2. CIVSB2213930: Plaintiffs Jane Doe (PSBR) 1-28 filed their Complaint on July 6, 2022 [PSBR Complaint/Litigation].
3. CIVSB2214049: Plaintiff Jane Doe (LOJK) filed her Complaint on July 15, 2022 [LOJK Complaint/Litigation].
4. CIVSB2216237: Plaintiff Jane Doe (ALA) filed her Complaint on July 22, 2022, and First Amended Complaint on January 4, 2023 [ALA FAC/Litigation].
5. CIVSB2217971: Plaintiffs Jane Doe (BLB) and Jane Doe (BRT) filed their Complaint on July 19, 2022 [BLB/BRT Complaint/Litigation].
6. CIVSB2218786: Plaintiff H.V. (minor through guardian ad litem Cristina Valdivia) filed her Complaint on August 24, 2022 [HV Complaint/Litigation].
7. CIVSB2219567: Plaintiffs T.F. and N.M. filed their Complaint on September 7, 2022 [TF/NM Complaint/Litigation].
8. CIVSB2220948: Plaintiff Jane Doe (NVN) (minor through guardian ad litem Victor Covarrubias) filed her Complaint [NVN Complaint/Litigation].
9. CIVSB2224251: Plaintiffs Jane Doe 1 and 2 filed their Complaint on October 17, 2022 [Does 1-2 Complaint/Litigation].

Each of the 9 Litigations plead 4 causes of action against the County: (1) negligence, (2) negligent supervision, (3) negligent hiring/retention, and (4) negligent failure to warn, train, educate, or enforce. Defendant District answered each Complaint/FAC.

Although each of the 9 Litigations name Riden as a Defendant, only the Does 1-2 Complaint pleads the 1st cause of action for negligence against Riden. None of the other 8 Litigations name Riden under the 1st cause of action, or any other cause of action. Defendant

¹ AMG 29 and 49 were voluntarily dismissed on May 23, 2024 and August 8, 2023, respectively.

Riden answered the PSBR, LOJK, ALA, HV, TF/NM, & NVN Litigations. Riden defaulted under BLB/BRT's Complaint. No answer, default, or dismissal is filed by or against Riden in the AMG or Does 1-2 Litigations.

A. Plaintiffs' Allegations

Each Litigation alleges Plaintiffs were students at Los Osos High School where they participated in sports or activities that brought them into the women's bathroom and locker room adjacent to the swimming pool. Defendant Riden was employed as an assistant coach and locker room attendant. He placed recording devices into the locker room/bathroom that were disguised as cellular telephone chargers. He used the recording for his sexual gratification. (AMG, PSBR LOJK, ALA, HV, TF/NM, NVN, and Does 1-2 Complaints/FAC at ¶¶ 3, 5, 29-30, 32; BLB/BRT Complaint at ¶¶ 10, 12, 36-37, 39.)

B. Cross-Complaints

Defendant District under each of the 9 Litigations filed identical Cross-Complaints against Cross-Defendant Riden for indemnity, contribution, proration, and declaratory relief (11/30/22, 11/30/22, 4/20/23, 4/11/23, 1/10/23, 8/22/23, 4/20/23, 11/1/24, and 12/13/23, respectively). Cross-Defendant Riden answered the Cross-Complaint filed in the Does 1-2 Litigation (1/25/24). He further filed one Answer to a Cross-Complaint on November 22, 2023, and 4 Answers to Cross-Complaints on October 24, 2024; however, these answers do not provide any information identifying which Cross-Complaint they are answering. In total, 9 Cross-Complaints were filed and 6 Answers to Cross-Complaints are on file.

C. Pending Motion

Defendant District moves for summary judgment against Plaintiffs who have not been identified as being on Riden's hidden cameras by the Sheriff's Office or the Referee retained in

these consolidated litigations.² The unidentified Plaintiffs subject to this motion oppose.

Defendant District replies. On May 28, 2026, Plaintiffs filed a supplemental declaration from attorney Freeman to address why personal declarations from 3 plaintiffs were not produced.

Although Defendant District moves separately for summary adjudication, it fails to comply with the Rules of Court, rule 3.1350(b), of separately listing in the notice the alternative causes of action, affirmative defense, duty, or damage sought to be adjudicated. It also does not separately list out those separate matters for adjudication within the filed Separate Statement. Since summary adjudication is not properly noticed, the motion is deemed solely as one for summary judgment. (*Gonzalez v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545-46 [“It is elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’ Only the ground bringing the motion duly gives notice that summary adjudication is being sought.... [¶] The language in Code of Civil Procedure section 437c, subdivision (f) makes it clear that a motion for summary adjudication cannot be considered by the court unless the party bringing the motion duly gives notice that summary adjudication is being sought.” (Internal citations omitted)].)

After reviewing all written submissions, issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.³

² Defendant claims that the unidentified Plaintiffs total 56. There are currently 86 Plaintiffs in this litigation. The Sheriff’s Department identified 21 Plaintiffs. The referee identified 24 Plaintiffs, *i.e.*, 3 additional Plaintiffs. Plaintiffs’ Counsel are arguing the Referee missed 6 Plaintiffs. This then leaves 56 unidentified Plaintiffs. However, Plaintiffs counter that the number of unidentified Plaintiffs still remains unknown because the Referee, as of May 4, 2026, informed Counsel of new Plaintiffs identified, but the report has not yet been issued. Yet upon being issued, a final number will be fixed. (See Separate Statement of Undisputed facts 7-8 and responses thereto.)

³ The Court finds that the moving party has complied with its meet-and-confer obligation.

II. APPLICABLE LAW

A summary judgment motion cuts through the parties' pleadings to determine if a trial on the facts is necessary. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 ["*Aguilar*"].) Only the pleadings establish the grounds for granting or denying summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.)

When the defendant is the moving party, the analysis requires (1) identifying the issues framed by the pleadings, (2) determining whether the moving party's showing has established facts that negate the opponent's claim and justify a judgment in the movant's favor, and (3) determining whether the opposition demonstrates the existence of a triable, material factual issue. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1662.) A defendant must establish no material facts are in dispute by showing "one or more elements of the cause of action ... cannot be established, or that there is a complete defense to that cause of action." (*Aguilar, supra*, 25 Cal.4th at p. 850.) Once that burden is met, the plaintiff must produce admissible evidence showing a triable issue of material facts exists. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar, supra*, 25 Cal.4th at pp. 849-51.)

The motion must be supported by declarations, discovery responses, depositions, and matters judicially noticed. (Code Civ. Proc., § 437c, subd. (b).) The Court must consider reasonable inferences drawn from the presented evidence. (*Mann v. Cracchiolo* (1985) 38 Cal.3d 18, 36.) The opposing party's evidence is construed liberally, and the moving party's evidence is construed strictly. (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 373.)

III. EVIDENTIARY OBJECTIONS

With their Opposition, Plaintiffs filed objections to Morton's Declaration: (1) p. 4:10-12, (2) 4:16-17, (3) 4:17-18, and (4) p. 4:20-23 on the grounds of speculation and/or lacks foundation. These objections are OVERRULED.

With their Reply, Defendant District filed 4 evidentiary objections to the following pleadings:

(A) West Declaration at (1) ¶ 19 and Exhibit 9 (police report) on the following grounds: hearsay, lacks foundation, and improper expert opinion. The objection to Exhibit 9 is SUSTAINED, on hearsay grounds. But the objection to ¶ 19 is OVERRULED; even if the exhibit is hearsay, the statement on the obtaining of the police report is admissible.

(B) Freeman Declaration at (1) ¶ 9, (2) ¶ 10, and (3) ¶ 11 on the following grounds: hearsay, lacks foundation, and improper expert opinion. These objections are SUSTAINED. Counsel cannot factually attest to the experience of Plaintiffs PSBR 13, 22, & 23.

(C) Kipper Declaration at (1) ¶ 25, (2) ¶ 26, and (3) ¶ 22(h) on the following grounds: improper expert opinion, irrelevant, hearsay, and/or lacks foundation. These objections are OVERRULED.

(D) 49 Unidentified Plaintiffs Declarations at (1)-(49) re paragraph alleging that they learned about Riden's concealed recording devices in the women's locker room and bathroom, and did so at time that they were partially or fully naked in those areas, and learning about the device caused her great distress, on the following grounds: lacks personal knowledge, speculation, lacks foundation, and improper expert opinion. These objections are OVERRULED.

IV. WHY SUMMARY JUDGMENT SHOULD BE DENIED

The claims against Defendant District under the operative complaints are negligence. In particular, the negligence causes of action are based on (1) duty to protect the students, which includes maintaining the privacy of the bathroom and locker room, (2) duty to supervise/monitor Riden, (3) duty to use reasonable care in hiring or retaining Riden, which includes investigating his background, (4) duty to warn about Riden, and (5) duty to take reasonable protective measures and/or enforce protective policies.

For a claim of negligence, the plaintiff must prove (1) legal duty, (2) breach of the legal duty, (3) causation, and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) An employer may be liable for negligent hiring, retention, and/or supervision if he knows or should know an employee is unfit, and because of the unfitness, the employee creates a risk with that risk materializing. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054; *Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 843.) To establish liability for negligent hiring, retention, or supervision, the plaintiff needs to prove (a) that the employee was unfit or incompetent to perform the work for which he was hired, (b) that the employer knew or should have known that the employee was unfit or incompetent and that this unfitness or incompetence created a particular risk to others, (c) that the employee's unfitness or incompetence harmed the plaintiff, and (d) that the employer's negligence in hiring, retaining, or supervising the employee was a substantial factor in causing the plaintiff's harm. (CACI 426.)

A. District's Presentation of Undisputed Facts

Defendant District's MSJ argues no duty is owed, causation is lacking, and no damages can be established, and the 4th cause of action is impermissible. It relies on the following facts.

From July 2017 through July 2022, Morton was the Assistant Principal at Los Osos. On August 23, 2021, she contacted the Public Resource Officer, Deputy J. Cadogan, and reported that one of the District's coaches found a device a few days earlier in the girl's restroom that was located on the pool deck. The device was given to Morton after it was located. The device appeared to resemble a charging block of an iPhone. It was black in color. When Deputy Cadogan reviewed and inspected the device, a camera lens on the back side of the device was noted. A SD memory card was inside. Defendant's Separate Statement of Undisputed Facts (UF) #9-12 (undisputed).

During her tenure, Morton would be the one to receive all information regarding recording devices. Prior to this discovery, there had been no complaints about Riden using recording devices, hidden or otherwise, in an inappropriate manner to capture images of female students. The first indication of Riden using a hidden recording device was when the subject camera was located a few days prior to August 23, 2021. UF #13-14. After asserting improper objections,⁴ Plaintiffs dispute because the District was on constructive notice of Riden's behavior.

Riden was a locker room attendant/equipment manager for the boys' locker room at Los Osos. This job did not require him to access the girls' locker room. Plaintiff's Additional Facts (AF) #1, 29.

Riden's hours were between 9:00 a.m. and 3:00 p.m. between 2017 and fall of 2021. AF #3. However, surveillance cameras showed him entering the girls' locker room/bathroom and the equipment storage room at suspicious hours, *i.e.*, (i) on August 16, 2021, entering at 5:39 a.m., and exiting at 5:47, (ii) on August 18, 2021, entering at 5:31 a.m. and exiting at 5:36 a.m.; and (iii) on August 20, 2021, entering at 5:31 a.m., and exiting at 5:32 a.m. The cameras would pick him up carrying an object and then not carrying an object. AF #4-10. However, surveillance footage is not reviewed unless there is an incident. AF #14. Los Osos also uses electronic key card. The log reveals that between June 1, 2021, and August 24, 2021, Riden used his key card to open doors in the locker room building before 7:30 a.m., on 142 occasions, and before 6:00 a.m. on 31 different days. The earliest he used his key card was 5:13 a.m., on July 28, 2021. The log further shows that Riden entered the equipment room after 5:00 p.m. on 27 occasions. AF #17-

⁴ Any objection is not to be restated or reargued in a separate statement. (Rules of Court, rule 3.1354(b).) Objections stated only in the Separate Statement can be ignored by the trial court. (*Hodjat v. State Farm Mu. Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9.)

18, 20. The key card entry logs were not reviewed. AF #23. The key card system could impose restrictions on where used, but no restrictions were placed on Riden's key card to preclude access to female-only areas. AF #27-28. Riden also has a physical key that allowed access the girls' bathroom. AF #42.

Riden testified that he placed the recording devices in the girls' locker room and bathroom areas in the evening when everyone was gone, and after the physical education teacher had left. The camera was placed over the years too many times to count. AF #11-12.

Cell phone chargers were prohibited in locker rooms from 2017 to 2021. AF #31. School rules pertaining to electronic devices would bar the presence of a cell phone charger in a locker room for charging a cell phone. AF #34. Nonetheless, at Los Osos, students were allowed to charge cellular phones in the locker room. The girls were allowed to charge their phones within the girls' locker room attendant's office. AF #35-36.

Per policy, if a student's phone was visible, or if items were left behind, or not permitted in the locker room, they were to be confiscated by school staff. AF #40. Riden's recording device was found 4 times during the 2018-19, 2019-20, and 2021-22 school years, but it was not confiscated or delivered to lost and found. AF #41.

Forty-nine Plaintiffs attest to using the girls' locker room/bathroom areas multiple times for sanitary and other purposes, and to change clothes. They are aware that a hidden device was used in that girls' locker room/bathroom that was to catch women in stages of undress, and occurred during times that they could be partially or fully nude. AF #43-47.

B. Duty

Initially, the District argues that it owed no duty because it had no evidence that Riden posed a risk of harm. It argues further that since Riden placing hidden cameras in the locker

room was unforeseeable, it owed no duty to prevent him from installing the cameras or take greater security measures.

Although a District may not be vicariously liable for the acts of an abuser, it can be liable for its administrators or supervisory personnel negligently hiring, retaining, or supervising. (*C.A. v. William S. Hart Union School Dist.* (2012) 53 Cal.4th 861, 865-66, 868-71 [“C.A.”]; *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 25 [“*Roe v. Hesperia*”].) Liability flows if the administrator or supervisor knew or should have known of the abuser’s danger to students. (*Roe v. Hesperia, supra*, 85 Cal.App.5th at p. 26.) School administrators and supervisors may be liable for negligent supervision if they fail to take reasonable measures to identify and respond to signs of potential abuse of students. (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 133.) Even if they lack actual knowledge of misconduct, the administrators and supervisors need to notice, identify, and respond to warning signs. (*Id.* at p. 135.) Whether the measures taken to prevent abuse and supervise personnel is a matter for the jury. (*Id.* at p. 137.)

In the context of whether a business must provide precautionary measures to protect patrons against third-party criminal conduct, the court considers the degree of foreseeability that the danger would arise on the business’ premises and the relative burden in providing a particular precautionary measure that would place on the business. (*Verdugo v. Target Corp.* (2014) 59 Cal.4th 312, 338.) If the security measure would be onerous, and the criminal conduct is not heightened or of a high degree, then it is not appropriate to impose a duty to provide the measure. (*Ibid.*)

School districts that have a special relationship with their students owe a duty to use reasonable measures to protect students from foreseeable injury by third parties acting

intentionally or negligently. (*C.I. v. San Bernardino Unified School District* (2022) 82 Cal.App.4th 974, 984.) However, the Rowland factors⁵ need to be applied to determine whether, even if a duty to protect exists, in balancing foreseeability-related factors and public policy factors, the duty of care should not be imposed in the circumstances. (*Ibid.*) The foreseeability factors are the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff will suffer injury, and the closeness of the connection between the defendant's conduct and the injury suffered. (*Ibid.*) The public policy factors are the moral blame attached to the defendant's conduct, the policy preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty, and the availability, cost, and prevalence of insurance for the risks involved. (*Id.* at p. 987.)

Under these authorities, for no duty to exist related to hiring, retaining, and supervising Riden, the District needs to establish a lack of knowledge of any propensity by Riden or any warning signs about him. Furthermore, for no duty to protect the female students of Los Osos, the District needs to establish that the use of hidden cameras was unforeseeable.

But here the only facts and evidence presented are that the Assistant Principal had received no prior reports of hidden cameras or that Riden attempted to capture images of the female students. This is insufficient to establish that the District had no duty to vet Riden before hiring him. The District's evidence also does not establish that the District lacked any reasonable basis to foresee that cameras may be hidden in a girl's locker room, sufficient to impose a reasonable duty to engage in some protective measures against it. Instead, the facts and evidence show Riden's "charger" was located at least 4 times before the full situation came to light, with no investigation or inquiries.

⁵ See *Rowland v. Christian* (1968) 69 Cal.2d 108.

But even accepting *arguendo* that Riden did nothing to draw suspicions of him attempting to capture images of female students, that does not end the inquiry as to the District's duty. The duty to supervise exists if warning signs exist. No evidence is offered that no warning signs existed about Riden. Some evidence is presented that security cameras and key card data show Riden's behavior of entering the girls' locker room earlier in the morning or late in the day, well before or after his work hours. These facts indicate a triable issue exists on the District's duty.

Next, Defendant District argues that it held no mandatory duty to provide protection. That argument is belied by California Constitution, article I, section 28, which includes a mandatory duty to secure a safe and secure school:

Article I, section 28, subdivision (f)(1), of the California Constitution provides that all students and staff of public schools have the inalienable right to attend safe, secure, and peaceful campuses. However, this provision does not mandate an affirmative duty to guarantee the safety of schools; rather, it establishes "parameters of the principle enunciated...."

(*Clausing v. San Francisco Unified School Dist.* (1990) 221 Cal.App.3d 1224, 1236-38.)

Finally, Defendant argues that the lack of evidence that Plaintiffs were recorded precludes a duty. In *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 625-28, the Court of Appeal addressed the duty to protect when a special relationship existed. In *Thomas*, the plaintiff sued her college and others related to her release from the school's soccer team based on unfair comparison with male counterparts. (*Id.* at p. 603.) In addressing the negligence cause of action, the Court of Appeal recognized that the special relationship doctrine creates the exception to the general rule that one has no duty to protect others from third party conduct. (*Id.* at p. 624.) However, the Court concluded the university owed no duty to protect the plaintiff from harm of a nonphysical nature due to her failure to define how any such duty would be imposed and the parameters that would define its scope. (*Id.* at p. 627.) It specifically noted

that it was not saying a school could never be held to have a duty to protect students from nonphysical injuries; rather, it was “simply not prepared to take the step [the plaintiff] suggests on the basis of the briefing she has provided.” (*Id.* at pp. 627-28.)

Thomas has no bearing on the duty associated with hiring, retaining, and supervising. The fact that Unidentified Plaintiffs may not have been seen on the camera recordings does not equate to the school being relieved of all duties in hiring, retaining, and supervising Riden.

As to the duty to protect, the case law does not stand for the proposition that lack of physical harm always means no duty was owed. Here, even if Plaintiffs were not captured on any recording does not support the conclusion that the District owed no duty to protect them from the possible exposure of being filmed while using the girls’ locker room.

Accordingly, Defendant District fails to establish that it owed no duty to protect its students, to vet Riden before hiring or retaining him, or to supervise Riden.

C. Causation

Causation is determined under the substantial factor test, *i.e.*, when a reasonable person would consider the defendant’s conduct or omission to have contributed to the plaintiff’s harm. (*Mayes v. Bryan* (2006) 139 Cal.App.4th 1075, 1092; CACI 430.) Although a defendant’s conduct need not be the only cause of the harm, it must be more than a remote or trivial factor or harm that would have occurred without the defendant’s conduct. (*Viner v. Sweet* (2003) 30 Cal.4th 1232, 1240; *Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752.)

A causal link must exist between the plaintiff’s injury and the defendant’s conduct, *e.g.*, the failure to provide adequate security measures. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 774.) The link cannot be predicated upon speculation or the mere possibility that the defendant’s conduct caused the harm. (*Ibid.*; *Williams v. Wraxall* (1996) 33 Cal.App.4th 120, 133.)

Generally, causation is a question of fact, but if undisputed facts permit only one reasonable conclusion, then it is a question of law. (*Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1528.)

Defendant District argues that causation is lacking because Unidentified Plaintiffs cannot demonstrate that they are visible on any recordings. However, accepting that fact, Defendant offers nothing to support that then means any breach by it in failing in its duty in hiring/retaining Riden, supervising Riden, or providing protective measures has no causal connection to Plaintiffs emotional harm from knowing that they may possibly have been caught in stages of undress and/or placed in an environment where a wrongdoer can record them in various stages of undress. Defendant District needed to provide facts based on evidence that demonstrates that the alleged breaches were not or could not be a substantial factor in causing any harm. The Court will not engage in speculation and guesses to determine if the causation element has been negated.

D. Damages

“‘[D]amages may not be based upon sheer speculation or surmise, and the mere possibility or even probability that damage will result from wrongful conduct does not render it actionable.’” (*Ferguson v. Lieff, Cabraser, Heimann & Bernstein* (2003) 30 Cal.4th 1037, 1048.) The damages must follow the complained-about act to a legal certainty. (*Ibid.*)

Similar to the causation argument, Defendant District argues Plaintiffs suffered no damages because there is no evidence that they were determined to be visible on Riden’s recordings. However, that alone is not going to support lack of damages. The District offers no facts or evidence that Plaintiffs suffered no compensable-type damages arising from the knowledge that the locker room in which they were in various stages of undress had a hidden camera in it.

Furthermore, 49 of the Unidentified Plaintiffs attests to suffering emotional harm from learning that a hidden camera existed during the times they were students at Los Osos and used the girls' locker room and bathroom.

E. 4th cause of action: Failure to Warn, Train, Educate, or Enforce

Defendant separately argues that the 4th cause of action pled by Plaintiffs is not a cognizable cause of action.

The law recognizes that there is no cause of action by a student for a claim of being inadequately educated. (*Chevlin v. Los Angeles Community College Dist.* (1989) 212 Cal.App.3d 382, 389.) No claim exists for the school lacking funds to educate. (*Campaign for Quality Education v. State of California* (2016) 246 Cal.App.4th 896, 915.)

But despite the title of the cause of action, the duty pled within the 4th cause of action is the duty to take reasonable protective measures. Plaintiffs are not alleging that they were inadequately educated or funds were lacking in the school system. They are alleging that, even though it was foreseeable that recording devices could be placed in private areas, Los Osos's administrators and staff failed to engage in reasonable protective measures to protect their female students.

Additionally, as noted above, Defendant District did not adequately seek the alternative summary adjudication of any cause of action, so even if the argument was valid, it could not obtain summary adjudication of the 4th cause of action.

V. CONCLUSION

1. Defendant District's Motion for Summary Judgment is DENIED. It fails in its burden of establishing it owed no duty associated with protecting Plaintiffs and the class, hiring/retaining Riden, or supervising Riden, no causal connection, and no damages, and/or triable issues exist on whether information was known about Riden's behavior to support a duty

to supervise [UF #9-14; AF #1, 3-12, 14, 17-18, 20, 23, 27-29, 31, 34-36, 40-47; and cited evidence: Morton & 49 Plaintiffs' Declarations; Riden, Morton, Oduro, Reyes, & Cypher's Depositions; Key Card Logs (Pls' Exh. 6); and Surveillance Footage (Pls' Exh. 16)];

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

Tentative -- NOT FINAL